

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, May 24, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29294 against Sergeant John Iskaros, Tax Registry No. 953989. This case was conferenced on May 16, 2024, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of the total forfeiture of twenty (20) vacation days, after a guilty plea.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board



POLICE DEPARTMENT

July 22, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202204631 (Incident Date: July 1, 2022 on DADS No. 2023-29294) involving
Lieutenant John Iskaros, Tax No. 953989

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Lieutenant John Iskaros and has determined that the proposed discipline is unwarranted.

After reviewing the facts and circumstances of the case, including the video footage of the incident, the Police Commissioner finds that there is insufficient evidence to establish that Lieutenant, then Sergeant, Iskaros said the complainant was acting like a monkey, was a monkey, or that he himself made monkey noises and imitated a monkey with his body movements. However, the Police Commissioner agrees with the remainder of the CCRB's findings.

Therefore, the Police Commissioner intends to impose no disciplinary action as to specifications one, two, and three and to impose the same penalty recommended by the CCRB, the forfeiture of twenty (20) vacation days, for the remaining specifications.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John D'Alessandro, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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ARVA RICE
INTERIM CHAIR

July 29, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Lieutenant (formerly Sergeant) John Iskaros
Disciplinary Case No.: 2023-29294

Dear Commissioner Caban:

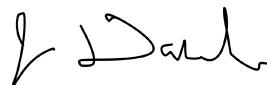
I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated July 22, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you intend that “determined that the proposed discipline is unwarranted.” Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification. Deputy Chief Marino stated that after reviewing the recommendation of CCRB, you determined that the actions of Lieutenant Iskaros do not warrant disciplinary action for Specifications One (1), Two (2) and Three (3) and that you plan to impose the proposed penalty of the forfeiture of twenty (20) vacation days for the remaining specifications. CCRB disagrees with your recommendation.

While Lieutenant Iskaros stated that the body and hand movements that he made toward § 87(2)(b) which consisted of him crouching down slightly, gripping and shaking his pant legs, opening his mouth wide while shaking his head back and forth, bouncing up and down, and clapping his hands—were all a part of his typical subconscious gestures and were not used as a means of mocking § 87(2)(b) the 121st Precinct Stationhouse video footage shows that these movements were made in direct response to § 87(2)(b) own movements, and Lieutenant Iskaros often made the same gestures moments after § 87(2)(b) initially did so. Moreover, Lieutenant Iskaros did not make these same movements during any other portion of any of the other stationhouse video footage. Additionally, Lieutenant Iskaros’ movements were consistent with § 87(2)(b) statements that Lieutenant Iskaros was imitating a monkey, and Lieutenant Iskaros’ head movements were consistent with § 87(2)(b) statement that Lieutenant Iskaros was making monkey noises. Therefore, it is clear by a preponderance of the evidence that Lieutenant Iskaros made racially offensive remarks and gestures by calling § 87(2)(b) a monkey, making monkey noises, and imitating a monkey’s movements and should be held accountable for this misconduct.

Please note that the negotiated penalty was one mandated by the Disciplinary Matrix, as CCRB took into account the totality of the circumstances during this incident and the nature of the misconduct when choosing the penalty for each specification and running them concurrently for the total forfeiture of twenty (20) vacation days. Additionally, this negotiated penalty was accepted by Assistant Deputy Commissioner of Trials Anne Stone during the plea conference held on May 16, 2024.

While the CCRB recognizes that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, CCRB requests that the negotiated penalty of the total forfeiture of twenty (20) vacation days be imposed for all specifications.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J Darche', is positioned above a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

CC: John D'Alessandro, Esq.